SARPY COUNTY SHERIFF

FIELD COMPANION

Honored to Serve

"TEAM BEFORE SELF"

Updated: February 2023

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Disclaimer

The Road Patrol Companion is intended to provide a quick way to access common and pertinent information to guide the reader in the likely next steps or tasks to be completed on a call for service. This booklet is not all encompassing and should not substitute referring to entire policies or the assistance of fellow Deputies and Supervisors.

Phone Numbers

Alegent Psych Association	402-717-4673
ASAP – Heartland Family Services	402-978-8100
Base Police	402-294-6110
Campus of Hope	402-827-0570
CenturyLink Emergency Line	800-215-4829
CMT – Heartland Family Services	402-978-8123
Douglas County Corrections	402-599-2233
Douglas County Hospital Psych	402-444-700
Douglas County Psych Direct Line	402-444-3375
DV Advocate	800-523-3666
HHS Hotline	800-652-1999
Immanuel Hospital E.R.	402-572-2121
Lasting Hope Recovery Center	402-717-2583
Lydia House (For Women)	402-829-1531
Lydia House Family Ministries	402-829-1531
Midlands Hospital E.R.	402-593-3550
Nebraska State Patrol – Troop A	402-331-3333
Offutt O.S.I.	402-294-3126
Omaha Fire Dept. Station 65	402-444-3500
Open Door Mission	402-422-1111
OSHA – Omaha Office	402-553-0171
Sarpy County – Law East	402-593-4393
Sarpy County – Law Info	402-593-4395
Sarpy County – Law West	402-593-4394
Sarpy County Attorney	402-593-2230
Sarpy County E911 Fax	402-593-5763
Sarpy County Fleet Services	402-537-6980
Sarpy County Highway Dept.	402-537-6900
Sarpy County Jail Booking	402-593-2299
Sarpy County Jail Booking Fax	402-593-4313
Sarpy County Jail Sergeant	402-593-4327

Sarpy County JJC	402-537-7000
Sarpy County Juvenile Court	402-593-5747
Sarpy County Sheriff 900-Days	402-690-8459
Sarpy County Sheriff 900-Nights	402-690-3064
Sarpy County Sheriff 950-Days	402-690-1961
Sarpy County Sheriff 950-Nights	402-690-2647
Sarpy County Sheriff Road Fax	402-593-1599
Sarpy County Sheriff's Office	402-593-2288
Sarpy County Sheriff's Office Fax	402-593-4323
Sarpy County STOP Program	402-593-1564
Sarpy County Tow Lot	402-253-2590
Sienna Francis House	402-341-9236
Stephen's Center	402-731-0238
Terrorist Screening Center	866-872-5678

Theft Offenses

Grading of Theft Offenses (28-518)

Less than $500	Class II Misdemeanor
$500 - $1,499	Class I Misdemeanor
$1,500 - $4,999	Class IV Felony
$5000 or more	Class IIA Felony

Theft Statutes

Use these to be more specific about the type of theft when writing incident reports.

- Theft by Blackmail/Extortion (28-513)
- Theft from Building (28-511)
- Theft by Computer (28-511)
- Theft from Construction Site (28-511)
- Theft by Deception (28-512)
- Theft from Gas Station (28-511)
- Theft from Motor Vehicle (28-511)
- Theft of Motor Vehicle Parts (28-511)
- Theft by Pocket Picking (28-511)
- Theft by Purse Snatching (28-511)
- Theft by Receiving Stolen Property (28-517)
- Theft of Services (28-515)
- Theft by Shoplifting (28-511.01)
- Theft by Taking (28-511)
- Theft by Transaction (28-511)

Always include dollar amount range on the incident form and in your report narrative.

Stolen Vehicles/Articles

- Complete an incident report for the item(s) stolen
  - Obtain as much detailed information for each item stolen.
  - A dollar amount of loss is required for all vehicles and articles
- Contact Law Info to place vehicles and stolen articles into NCIC as stolen
- Contact the On-Call Investigator for felonious amounts via phone or email

Recovered Stolen Vehicles/Articles

- Verify the recovered item(s) is the item you received a NCIC "hit" on.
- Contact the On-Call Investigator to determine if the Douglas County Sheriff's Office Crime Lab is needed to process the vehicle (Sarpy Only)
- If the item(s) was listed as stolen from a jurisdiction outside of Sarpy County, you must obtain the original agency's report
  - You do not need to call the on-call investigator for outside agency stolen vehicles. An email will suffice.

Criminal Mischief (28-519)

Grading of Criminal Mischief Offenses

Less than $500	Class III Misdemeanor
$500 - $1,499	Class II Misdemeanor
$1,500 - $4,999	Class I Misdemeanor
$5000 or more	Class IV Felony

Assault

Assault Terms

- **BODILY INJURY** shall mean physical pain, illness, or any impairment of physical condition
- **SERIOUS BODILY INJURY** shall mean bodily injury which involves a substantial risk of death, or which involves substantial risk of serious permanent disfigurement, or protracted loss or impairment of the function of any part or organ of the body
- **DEADLY PHYSICAL FORCE** shall mean force, the intended, natural, and probable consequence of which is to produce death, or which does, in fact, produce death
- **DEADLY WEAPON** shall mean any firearm, knife, bludgeon, or other device, instrument, material, or substance, whether animate or inanimate, which in the manner it is used or intended to be used is capable of producing death or serious bodily injury

Assault-1st Degree (28-308)

- Knowingly and intentionally causes serious bodily injury
- Class II Felony

Assault-2nd Degree (28-309)

- Knowingly and intentionally causes injury with a dangerous instrument
- Recklessly causes serious bodily injury with a dangerous instrument
- Unlawfully strikes or wounds another while confined in a jail or adult correctional facility *(Does not apply to JJC assaults)*
- Class IIA Felony

Assault-3rd Degree (28-310)

- Intentionally, knowingly, or recklessly causes bodily injury to a person
- Threatens in a menacing manner
- Class I Misdemeanor
- Class II Misdemeanor if it is a mutual-consent assault

Domestic Assault (28-323)

- Domestic Assault-3rd Degree
  - Intentionally and knowingly causes bodily injury to his or her intimate partner;
  - Threatens an intimate partner with imminent bodily injury; or
  - Threatens an intimate partner in a menacing manner.
  - Class I Misdemeanor-1st Offense; Class IV Felony for 2nd and subsequent offenses
- Domestic Assault-2nd Degree
  - Intentionally and knowingly causes bodily injury to his or her intimate partner with a dangerous instrument.
  - Class IIIA Felony
- Domestic Assault-1st Degree
  - Intentionally and knowingly causes serious bodily injury to his or her intimate partner.
  - Class IIA Felony
- Intimate Partner Defined
- Spouse; a former spouse; persons who have a child in common; and persons who are or were involved in a dating relationship
- Try to establish the predominate aggressor

- If determined, the officer may not arrest the other person; unless a separate incident has occurred. 2 arrests require 2 separate reports.
- Obtain written statements from victims, witnesses, reporting party, suspect (if possible)
- Custodial arrest is required if an arrest is made.
- Complete a domestic violence worksheet
- Place in "Magic Box" in Deputy Work Room
- Arresting or Assisting Deputy call Domestic Violence Advocate in cases of arrest (Hotline: 1-800-523-3666)
- Assisting Deputies shall complete a supplemental report if an arrest is made
- Arrest Case – follow up photos after 48 hours
- Violation of No Contact Provision of Bond
    - Complete an Information Report and forward to the County Attorney for possible bond revocation
- ***If children are present during the assault, consider charging the suspect with Child Abuse (Negligent) (N.R.S. 28-707 (1)(a))***

Strangulation (28-310.01)

- Impedes normal breathing or circulation of blood by applying pressure on the throat or neck of another person
    - "Could you breathe?"
- Class IV Felony
- Class III Felony
    - if dangerous instrument used
    - serious bodily injury
    - previous conviction (must be court enhanced)
- Complete Strangulation Form - ***MANDATORY***

Child Abuse (28-707)

- The victim must be 17 years of age or younger.
- A person commits child abuse if he or she knowingly, intentionally, or negligently causes or permits a minor child to be
    - Placed in a situation that endangers his/her life or mental/physical health
    - Cruelly confined or punished
    - Deprived of necessary food, clothing, shelter, or care
    - Placed in a situation to be sexually exploited by allowing, encouraging, or forcing such minor child to solicit for or engage in prostitution, debauchery, public indecency, or obscene or pornographic photography, films, or depictions
    - Placed in a situation to be sexually abused
- Child abuse is a Class I misdemeanor if the offense is committed negligently and does not result in serious bodily injury
- Child abuse is a Class IIIA felony if the offense is committed knowingly and intentionally and does not result in serious bodily injury
- Child abuse is a Class IIIA felony if the offense is committed negligently and results in serious bodily injury
- Child abuse is a Class II felony if the offense is committed knowingly and intentionally and results in serious bodily injury
- The initial responding Deputy must determine the validity to a complaint. A report must be completed for all child abuse complaints.

- If a complaint is determined to be valid, the Deputy must contact the Road Patrol Supervisor to inform him/her of the situation and contact the on-call investigator.
- If those involved refused to cooperate and there is not an immediate risk, the Deputy shall complete a report and forward it to the HHS hotline. In some exigent circumstances, if there is an immediate risk, forced entry may be required.
- The responding Deputy shall notify HHS via the HHS hotline at 1-800-652-1999.

Further information is in SOP P-4500 Child Abuse-Neglect

Helpful Conditions to Photograph and Document in Reports (Present or Not)

A) Animal feces on the floor when children are present
B) Refuse piled in food preparation areas
C) A lack of food or rotting, inedible food
D) Visible vermin (insects, rodents, etc.)
E) Unsafe conditions
F) Inoperable plumbing
G) Lack of utilities (electricity, gas, or water)
H) Persistent, obnoxious odors due to unsanitary conditions
I) Lack of clean clothing

****PHOTOS SHALL BE TAKEN AT ALL CLAIMS OF ABUSE WHETHER INJURIES ARE VISIBLE OR NOT****

- HHS Disposition Meanings
    - Not Accept - report entered, but does not meet criteria for assessment - all reports are logged and remain in the DHHS system.
    - Law Enforcement Only - report does not meet criteria for CPS involvement but there are potential law violations by a person outside the household
    - Information Only - referral and information documented in system
    - Accept – meets criteria for CPS involvement
- Accepted Reports – assigned a priority response
    - Priority one: Within 24 hours
    - Priority two: Within 5 days
    - Priority three: Within 10 days

Sexual Assault Investigations

- For **CHILD** sexual assault investigations, the initial responding Deputy shall only gather the bare minimum facts to convey to the on-call investigator. Obtaining too many facts has the potential to spoil a Project Harmony interview at a later date.
    - Example: You are called to an elementary school where a child told a Counselor that her father "put something in her" and it hurt. The child is also complaining of pain. ***In this case, you do not need to ask the child any questions. Contact the on-call Investigator with the info to arrange a Project Harmony interview***
    - The items the initial Deputy needs to determine are:
        - Venue: Where did this occur?
        - Timeframe: When did this occur?
        - Perpetrator(s): Who is(are) the suspect(s)?
        - Basic Facts: In the simplest and least intrusive way of asking, what basically happened?
    - Minimal Facts Interview (If you need to question the child, here are steps to consider)
        - If child volunteers information:
            - Listen carefully
            - Write down child's exact words to describe the disclosure
            - If child is not volunteering information, ask questions to gather minimum facts needed:
                - What happened?
                - Where did it happen?

        - Let's talk about when… (helps determine if immediate medical attention is needed)
    - Do you need to take steps to assure safety of victim and other possible victims?

- For **ADULT** sexual assault investigations, utilize a Sexual Assault Checklist to ensure all pertinent details/questions are asked
    - Determine if any physical evidence exists
        - The Crime Lab may be needed to collect
    - Contact the Road Patrol Supervisor and On-Call Investigator for any sexual assault investigation
    - Ensure the victim does not shower or clean
    - Inquire about willingness to complete a sexual assault examination by a SANE Nurse

Sexual Assault Terms Defined

- **INTIMATE PARTS** means the genital area, groin, inner thighs, buttocks, or breasts
- **SERIOUS PERSONAL INJURY** means great bodily injury or disfigurement, extreme mental anguish or mental trauma, pregnancy, disease, or loss or impairment of a sexual or reproductive organ
- **SEXUAL CONTACT** means the intentional touching of the victim's sexual or intimate parts or the intentional touching of the victim's clothing covering the immediate area of the victim's sexual or intimate parts. Sexual contact shall also mean the touching by the victim of the actor's sexual or intimate parts or the clothing covering the immediate area of the actor's sexual or intimate parts when such touching is intentionally caused by the actor. Sexual contact shall include only such conduct which can be reasonably construed as being for the purpose of sexual arousal or gratification of either party. Sexual contact shall also include the touching of a child with the actor's sexual or intimate parts on any part of the child's body for purposes of sexual assault of a child
- **SEXUAL PENETRATION** means sexual intercourse in its ordinary meaning, cunnilingus, fellatio, anal intercourse, or any intrusion, however slight, of any part of the actor's or victim's body or any object manipulated by the actor into the genital or anal openings of the victim's body which can be reasonably construed as being for nonmedical or non-health purposes. Sexual penetration shall not require emission of semen

Sexual Assault-1st Degree (28-319)

- Any person who subjects another person to sexual penetration (a) without the consent of the victim, (b) who knew or should have known that the victim was mentally or physically incapable of resisting or appraising the nature of his or her conduct, or (c) when the actor is nineteen years of age or older and the victim is at least twelve but less than sixteen years of age is guilty of sexual assault in the first degree.
- Class II Felony

Sexual Assault of a Child-1st Degree (28-319.01)

- When he or she subjects another person under twelve years of age to sexual penetration and the actor is at least nineteen years of age or older; or
- When he or she subjects another person who is at least twelve years of age but less than sixteen years of age to sexual penetration and the actor is twenty-five years of age or older.
- Class IB Felony

Sexual Assault-2nd/3rd Degrees (28-320)

- Sexual contact (a) without consent of the victim, or (b) who knew or should have known that the victim was physically or mentally incapable of resisting or appraising the nature of his or her conduct is guilty of sexual assault in either the second degree or third degree.
- Class IIA felony if the actor shall have caused serious personal injury to the victim.
- Class I misdemeanor if the actor shall not have caused serious personal injury to the victim.

Sexual Assault of a Child-2nd/3rd Degrees (28-320.01)

- He or she subjects another person 14 years of age or younger to sexual contact and the actor is at least 19 years of age or older.
- Sexual assault of a child is in the second degree if the actor causes serious personal injury to the victim. Sexual assault of a child in the second degree is a Class II felony for the first offense.
- Sexual assault of a child is in the third degree if the actor does not cause serious personal injury to the victim. Sexual assault of a child in the third degree is a Class IIIA felony for the first offense.

Sexual Assault-Use of Electronic Communication Device (28-320.02)

- No person shall knowingly solicit, coax, entice, or lure (a) a child sixteen years of age or younger or (b) a peace officer who is believed by such person to be a child sixteen years of age or younger, by means of an electronic communication device
- Class I Felony

Unlawful Intrusion (28-311.08)

- Unlawful for any person to knowingly intrude upon any other person without his or her consent in a place of solitude or seclusion. (Class 1 Misd)
- Unlawful to photograph, film, or otherwise record an image or video of the intimate area of someone without his or her consent. (Class IV Felony)
- Unlawful to knowingly distribute or make public an image or video of another person in violation of subsection 2 (above bullet point) without consent. (Class II Felony)
- Unlawful to knowingly distribute or make public an image or video of another person's intimate area or of another person engaged in sexually explicit conduct if the other person had a reasonable expectation the image would remain private, knowing the other person did not consent to distributing or making the image/video public, and if distributing the image or video serves no legitimate purpose. (Class 1 Misd-1st Offense) (Class IV Felony – 2nd or subsequent offenses) ***{Often referred to as "Revenge Porn"}***
- Unlawful for any person to threaten to distribute or otherwise make public an image or video of another's intimate area or of another person engaged in sexually explicit conduct with the intent to intimidate, threaten, or harass any person. (Class I Misd)

CCW Violations

- N.R.S. 28-1202 (Carrying a Concealed Weapon)
  - Any persons who carries a weapon or weapons concealed on or about his or her person, such as a handgun, knife, brass knuckles, or any other deadly weapon commits the offense of CCW.
  - Does not apply to holders of a CCW permit
  - Class I misd. if it is the suspect's first offense
  - Class IV felony if they have a previous CCW conviction
- CCW Permit (Policy P-5200)
  - Cannot carry in certain locations (N.R.S. 69-2441)
    - Government meeting
    - Financial institutions
    - Schools
    - Emergency room
    - Places of worship
    - Where posted
  - Cannot be under the influence or consuming drugs/alcohol
  - If an arrest occurs for a violation of the CCW Permit statute:
    - Deputy shall seize handgun and permit and provide a property receipt;
    - Complete Application of Revocation of CCW Permit (Found in Policy P-5200)
  - CCW Permits can also be seized if the suspect has a permit and is arrested for any felony crime, crime of violence, unlawful use of a weapon, and controlled substance possession.

Terroristic Threats (28-311.01)

- A person commits terroristic threats if he or she threatens to commit any crime of violence
  - With the intent to terrorize another
  - With the intent of causing the evacuation of a building, place of assembly, or facility of public transportation; or
  - In reckless disregard of the risk of causing such terror or evacuation
- Class IIIA Felony

Stalking (28-311.03)

- Any person who willfully harasses another person or a family or household member of such person with the intent to injure, terrify, threaten, or intimidate commits the offense of stalking.
  - Harass means to engage in a knowing and willful course of conduct directed at a specific person which seriously terrifies, threatens, or intimidates the person and which serves no legitimate purpose
- Class I misdemeanor
- Class IIIA felony if:
  - The person has a prior conviction under such section or a substantially conforming criminal violation within the last seven years;
  - The victim is under sixteen years of age;
  - The person possessed a deadly weapon at any time during the violation

Intimidation by Telephone or Electronic Communication (28-1310)

- With intent to intimidate, threaten, or harass an individual, the person telephones such individual or transmits an electronic communication directly to such individual, whether or not conversation or an electronic response ensues, and the person:
    - Uses obscene language or suggests any obscene act;
    - Threatens to inflict physical or mental injury to such individual or any other person or physical injury to the property of such individual or any other person; or
    - Attempts to extort money or other thing of value from such individual or any other person.
- The offense shall be deemed to have been committed either at the place where the call or electronic communication was initiated or where it was received.
- Class III Misdemeanor
- Electronic communication means any writing, sound, visual image, or data of any nature that is received or transmitted by an electronic communication device

Protection Order Violation (42-924)

- Protections orders, no matter what state they are issued in, can be enforced using this statute
  - Military protection orders are not valid for arrest. If a military protection order is violated, contact Offutt Security Forces
- All protection orders must be verified through dispatch
  - Ensure all conditions of the order are known
  - Obtain the date and time the order was served
- Class II Misdemeanor
- Class I Misdemeanor if there is a prior conviction
- Class IV Felony of the prior conviction is involving the same petitioner as the current arrest
- The suspect must be arrested and cannot be street-released

Identity Theft (99-9046) (28-639)

- A general identity theft call where the reporting party wants documentation of online identity theft, account numbers stolen, or disputed charges, you may complete a report with 99-code 99-9046. This is likely done when banks require a police report to be completed to refund charges.
- If the crime occurred in Sarpy County, it should be listed as an incident report and an active criminal case with statute *Identity Theft 28-639*. According to Sarpy County judicial decision and County Attorney policy, the crime of identity theft is considered completed like any other theft or unauthorized use statute and the venue for prosecution is the county in which the crime is completed.

Criminal Impersonation (28-638)

- A person commits the crime of criminal impersonation if he or she:
  - Pretends to be a representative of some person or organization and does an act in his or her fictitious capacity with the intent to gain a pecuniary benefit for himself, herself, or another and to deceive or harm another
    - Class III Felony - $5000+
    - Class IV Felony - $1500-$4999
    - Class I Misd - $500-$1499
    - Class II Misd - $0-$499
  - Knowingly provides false personal identifying information or a false personal identification document to a court or a law enforcement officer (Class IV Felony)

Forgery – 1st Degree (28-602)

- A person commits forgery in the first degree if, with intent to deceive or harm, he falsely makes, completes, endorses, alters, or utters a written instrument which is or purports to be, or which is calculated to become or to represent if completed:
    - Part of an issue of money, stamps, securities, or other valuable instruments issued by a government or governmental agency; or
    - Part of an issue of stock, bonds, bank notes, or other instruments representing interests in or claims against a corporate or other organization or its property.
- Class III Felony

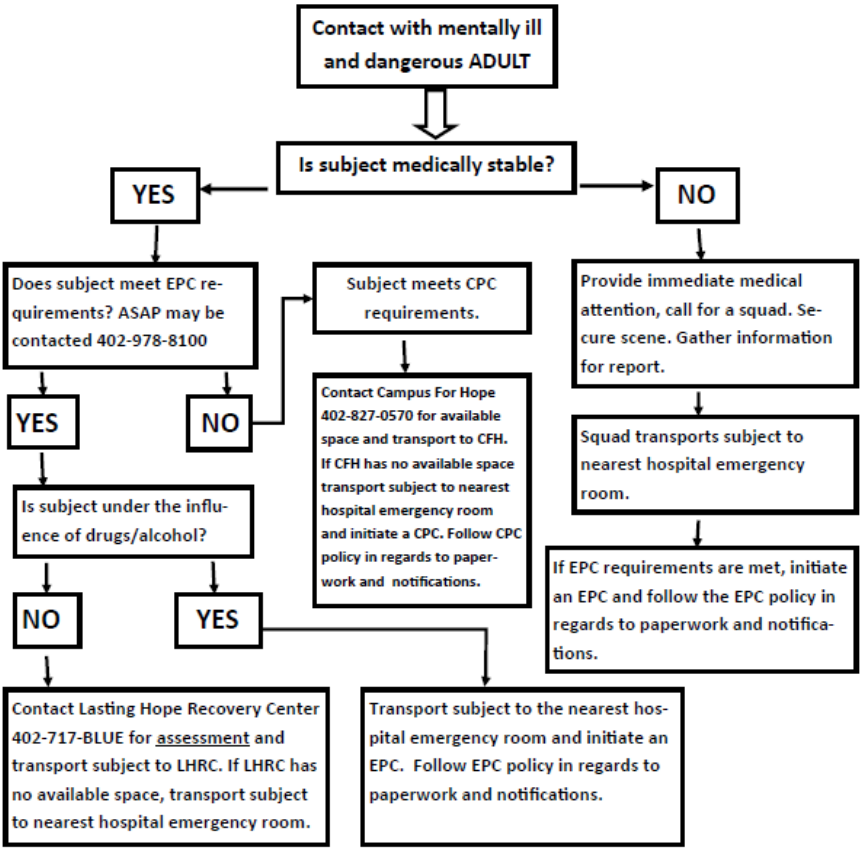
Forgery – 2nd Degree (28-603)

- Whoever, with intent to deceive or harm, falsely makes, completes, endorses, alters, or utters any written instrument which is or purports to be, or which is calculated to become or to represent if completed, a written instrument which does or may evidence, create, transfer, terminate, or otherwise affect a legal right, interest, obligation, or status, commits forgery in the second degree.
    - IIA Felony - $5000+
    - IV Felony - $1500-$4999
    - I Misd. - $500-$1499
    - II Misd – $499 or less

ASAP/Crisis Mediation

- ASAP Counselors respond 24/7 for evaluation of persons possibly danger to self or others. This can also be used for emergency family counseling.
- Both services create written “safety plan” and copy given to individual(s) and Deputy
- Report should be completed using “99-9059 ASAP/CMT Response” with copy of safety plan included, if EPC is not done.
- ASAP 402-978-8100
- You must complete a Mental Health Worksheet

Emergency Protective Custody Flow Chart



A person subject to CPC ***MUST*** be on public or quasi-public property only, and is a danger to themselves or others, or the intoxicated subject is otherwise incapacitated. A reasonable effort ***SHALL*** be made to turn the intoxicated subject over to a responsible family member, responsible adult, or facility willing to accept responsibility for the intoxicated subject. **SOP P-5600**

Generate an EPC report number. Complete an EPC certificate, leave subject the "Rights of a person involved in a commitment proceeding". Leave original EPC form with hospital, include photocopy of EPC certificate with EPC incident report. Fax EPC certificate to County Attorney & Board of Mental Health. **SOP P-4600**

Emergency Protective Custody (Adult)(99-9016)

- Individual is a danger to himself or herself due to alcohol/drug abuse or mental illness
- Contact Lasting Hope Recovery Center prior to responding to give them a synopsis of the EPC being brought to them
    - Document name of LHRC Representative
- Intoxicated Subject may be taken to Campus of Hope
- If Lasting Hope states there is no bed available, take the individual to the nearest medical facility.
- If possible, give subject copy of "The Rights of a Person Involved in a Commitment Proceeding" or place it in their property.
- Obtain separate report number for the EPC and cross reference with the report number from original call. The EPC incident shall not be referred to in any other report (i.e., arrest report) for confidentiality.
- A copy of the EPC certificate should be left with the hospital
- The original EPC certificate should be included with the incident report.
- Transcription will send the EPC certificate to the appropriate entities. You **do not** need to fax it anywhere.
- You must complete a Mental Health Worksheet.

Emergency Protective Custody (Juv)(99-9016)

- Juvenile means 17 years old and younger (for EPC ONLY)
- Juvenile is a danger to himself or herself due to alcohol/drug abuse or mental illness
- If the juvenile meets criteria, an EPC shall be completed. **Parents can voluntarily commit WITH Supervisor on-scene permission.**
- The juvenile may be taken to Immanuel Hospital, if possible. If Immanuel states there are no beds available, document the hospital employee's name and transport to the nearest facility.
- Call HHS for Custody - #1-800-652-1999 and document name of HHS representative
- Complete Affidavit of Emergency Admittance (Juv EPC Form)
- Original Affidavit should be left with the hospital.
- Photocopy of Affidavit w/ original incident report
- Scan documents using the scanner/copier in investigations and send to "Juvenile Removal Weekends" (HHS, County Attorney, & Judges, will receive documents as an email)
- Obtain separate report number for the EPC and cross reference with the report number from original call. The EPC incident shall not be referred to in any other report (i.e., arrest report) for confidentiality
- Parties who are 18 years old and not current wards of the state are to be EPC'ed following the adult EPC procedures. However, an attempt shall first be made to place the party at Immanuel Hospital. If no beds are available or if party needs medical attention, transport to the nearest hospital.
- 18 year-olds who are a **ward of the state** are to be EPC'd as a juvenile, transported to Immanuel Hospital and HHS notified.

Civil Protective Custody (99-9055)

- Used for persons suspected of being intoxicated, incapacitated, and dangerous per procedures granted by N.R.S. §53-1,121
- Deputy has contact with an intoxicated or otherwise incapacitated person, the Deputy can CPC if:
- The Deputy deems the person a danger to himself/herself or others and;
    - The person is on public or quasi-public property and;
    - Other reasonable efforts for handling the person are unsuccessful
- Deputy shall determine if medical attention is needed for the person
- If a person is being released to a hospital under CPC, the Deputy must receive permission from the Shift Supervisor
- If the person is being charged with a misdemeanor crime, the Deputy may cite & release the person per P-4700.
- CPCs not requiring medical attention will be transported to Campus for Hope – 1490 N. 16th Street Omaha (16th St / Cuming St) 402-827-0570
- Complete CPC form and retain a copy for incident report
- Complete an incident report using 99-9055 “CPC”.

Ungovernable Juvenile (43-248)

- A citation can be issued for this offense and the child can be left at home, if appropriate
- It is the Deputy's decision to detain subject if detained.
- If detained:
  - Contact JPO to confirm & authorize detention
  - Complete Affidavit for probable cause
  - Citation to Juvenile for Ungovernable Juvenile (43-248) with a court date "To Be Set"
- If the JPO will not authorize detention
  - You may also contact HHS and make a ward of state
  - Complete Affidavit of Child Removal (Delinquency)
  - You must remove if the child is in immediate danger
  - Contact HHS – 402-595-1076
    - Or the Hotline - 800-652-1999
    - The juvenile can be transported to HHS Office or can be transported to JJC - #537-7000
    - Special Affidavit
    - Fax County Attorney - #593-4359
    - Fax HHS - #595-1354
    - Fax Juvenile Judges - #596-9192/#537-9726
- Citation to Parent/separate from arrest
  - Detention Hearing (43-247)
  - The Court date in County Court the next judicial day (non-weekend or holiday) @ 0830
  - If offense is on weekend, court date should be the next Monday (if not a holiday).
  - The hear is to determine if children are returned to parents

Juvenile Detention for Crimes

- Felony crime, misdemeanor committed in presence of a Deputy, juvenile is chronic runaway, or endangered in current surroundings
- Contact Parents in timely manner
- Contact on-call Juvenile Probation Officer (JPO)
- Transport to JJC and remain until JPO has arrived
- Only a Judge or JPO can authorize detention
- Complete Probable Cause Affidavit and provide to JPO
- Include PC Affidavit with arrest report

Juvenile Charged as an Adult

- Contact the JPO with the request and explain the circumstances of the crime.
- A probable cause affidavit must be completed
- Fax the request along with the affidavit to the County Attorney's Office with ATTN: Juvenile Division
    - 402-593-4359

Child Removal/Safekeeping (No Abuse)

- For removal of children due to parent's being arrest, incapacitated, etc.
- Placement should try to be made with family members, close friends, or neighbors.
- Contact the HHS Hotline to begin removal proceedings
- If needed, the JJC can assist in transporting.

Child Removal (Victim of Abuse)

- Removal is to be completed if the parent is arrested for child abuse and the safety of the child is compromised.
    - This is not necessary for each child abuse arrest and is considered on a case-by-case basis.
- Contact the on-call investigator to begin the child removal process.
- Contact HHS to begin the removal proceedings.
- The child(ren) can be transported to the HHS office, JJC, or Sheriff's Office.
- A Child Removal Affidavit must be completed.
- Fax a copy of the affidavit to HHS and County Attorney
- Email a copy via the Investigations copier to Juvenile Judges
- Issue a separate citation to the parents for the removal
    - Detention Hearing Citation (43-247)
    - Court date in County Court one week from day of removal with the time set at 0845
    - If the offense is on weekend, the court date should be set one week from the next Monday.
    - The hearing is to determine if the child(ren) are returned to parents

Driving Under the Influence – Alcohol/Drugs (60-6,196)

- A traffic stop or contact is made via a radio broadcast (observe your own probable cause is best practice), erratic driving, and/or traffic offenses
- Can be made on public or private property
- Note all observations made upon initial contact
    - Bloodshot & watery eyes, slurred speech, odor of alcoholic beverage, difficulty with providing documents, etc.
- Complete field sobriety tests, if possible.
    - Prior to beginning, check the mouth for obstructions and begin a 16-minute observation period
- Based on observations & PBT, determine if an arrest is to be made
    - Additional assistance from a Drug Recognition Expert (DRE) may be necessary
- Post-Arrest Chemical Test Advisement
    - 'Implied Consent' for breath tests (No Search Warrant needed)
    - If blood or urine is needed, the driver must provide written consent.
        - If no consent is given, a search warrant must be obtained
- Read ALR Verbal Notice of Revocation and confiscate license (Applies to any non-Nebraska license as well)
    - No ALR or license confiscation if the charge is DUI-D
- Issue the driver the yellow copy of the ALR form
- If a child under the age of 16 was in the vehicle while arrestee was driving, you may additional arrest for Operate

MV Intoxicated w/ child under 16 (28-1254)

Cite and Release Procedures

- DUI Arrests may be Cited & Released for:
  - DUI (Alcohol) – 1st Offense
  - DUI (Alcohol) – 2nd Offense
- DUI-Drugs will all be lodged in the Sarpy County Jail
- Refusal to Submit to PBT and/or Datamaster are not grounds for lodging in jail
- Identity must be clearly established
- Supervisors may override the policy and allow an arrestee to be lodged in jail under special circumstances
- The Deputy will allow the arrestee to arrange a ride (family, friend, rideshare service, etc.) or drive the suspect home.

Forms Checklist for DUI Report

- ✓ Attachment 4 (PBT Form)
- ✓ Attachment 16 (Datamaster Form)
- ✓ ALR Form (White & Pink Copies)
- ✓ Arrestee's Driver's License
- ✓ *DUI SFST Checklist (If completed/Optional)*
- ✓ Warrantless Arrest Affidavit *(If Lodged)*
- ✓ Citation

DUI Blood/Urine Search Warrant Process

- Complete a search warrant when the suspect is unconscious or refuses to comply with Post Arrest Chemical Test Advisement requesting blood
- Complete the search warrant affidavit packet or the South Metro Crash Response Team Kiosk
    - *This packet is a guideline and items can be crossed out, written in, etc. All items on the pre-written packet may not be applicable to your specific case*
    - *SMCRT Kiosk Site:*
        - *https://sites.google.com/view/smcrtkiosk/*
- Once completed, contact the On-Call County Attorney to locate a Judge to review the affidavit and sign the search warrant
- Once signed, the search warrant can be executed. Always keep the original but provide a copy to the hospital and a copy for your incident report
- Provide a copy of the search warrant to the suspect. **Do not provide a copy of the search warrant affidavit**
- Complete the inventory return in the packet. The return describes what was seized (i.e., "Two Vials of John Smith's Blood")
- Complete a Search Warranty Inventory triplicate form (located in the Evidence Processing Room)
- Send original affidavit, search warrant, return inventory, and copy of search warrant inventory triplicate via interoffice envelope to the Clerk of the County Court (Barb Pousson)
- A copy of the affidavit, search warrant, return, and triplicate should be submitted with the incident report

DUI-Zero Tolerance – Under 21 - .02 (60-6,211.01)

- Complete the normal DUI investigation process as outlined in pages 27 & 28
- The arrestee (juvenile or adult) can be transported to the Sarpy County Jail for Datamaster testing.
    - For BAC .02-.079, cite & release the arrestee (juvenile or adult)
        - For Juveniles, contact the parent or guardian to release the child to them
    - For BAC .08+:
        - Juvenile: Cite & Release
            - For Juveniles, contact the parent or guardian to release the child to them
        - Adult: Jail as normal in the regular DUI process
- No ALR for Zero Tolerance DUIs. Do **NOT** confiscate the driver's license
- Complete the arrest report and include the Attachment 16 and Attachment 14 with the report.

MIP - Alcohol (53-180.02)

- Per the Sarpy County Attorney in a Dec. 2018 Memo:
    - When there is a large group of minors to test, such as at a party, our recommendation is that all suspects should be tested (without the 15-minute observation period). After that, anyone with a positive reading from the preliminary breath test (PBT) should be observed for 15 minutes and then tested again. This is a more efficient way of meeting the requirements of Title 177 when testing a large group of suspects.
    - Additionally, preliminary breath testing and results should not be a substitute for an officer's personal observations. In addition to PBT results, officers should include information about other evidence of alcohol consumption by the minor such as, odor of alcoholic beverage emanating from the suspect, condition of the eyes (i.e. bloodshot, watery, glassy), slurred speech, proximity of suspect to alcoholic beverages, and/or any other observations of intoxication based on officer's training and experience. These facts and observations are helpful in prosecuting these cases and could be the only evidence to support prosecution in the event a PBT result is suppressed or found to be otherwise inadmissible.

Drug Enforcement

- Per the Sarpy County Attorney in a Dec. 2018 Memo:
  - If a suspect has a product containing cannabidoil – whether it is oil, edibles, pills, etc. – the appropriate citation is possession of marijuana (less than 1 ounce). If the defendant is selling or otherwise distributing the cannabidoil product in some manner, the citation should be reflected as such.

Fireworks

- Sarpy County (Unincorporated)
  - Falls under County Disorderly Conduct Ordinance (2-1-01)
  - Fireworks are not allowed unless used during the following times:
    - June 25 – July 3 | 0800-2200
    - July 4 | 0800-Midnight
    - Dec 31 – Jan 1 | 0800 – 0100
- City of Gretna
  - City Ordinance 8-504
  - Fireworks are not allowed unless used during the following times:
    - June 25 – July 3 | 1000-2200
    - July 4 | 1000-Midnight
    - December 31 | 1000-Midnight
- City of Springfield
  - City Ordinance 6-333
  - Fireworks are not allowed unless used during the following times:
    - June 25 – July 3 | 0800-2200
    - July 4 | 0800-Midnight
    - December 29-30 | 0800-2200
    - December 31 | 0800-Midnight

TraCS/Mach

- Traffic and Criminal Software (TraCS) is used for electronic citations, electronic warnings, DOT40 (crash) reports, and FI cards.
- Mobile Architecture for Communications Handling (MACH) is used for GPS tracking to know the location of fellow Deputies, Troopers, and other agencies equipped with the program.
- Username format: SCSO***badgeinitials*** (Ex: scso959abc)
- A TraCS/MACH administrator can assist in password resets (Sgt. Percifield or Dep. Manning)

TraCS Tips

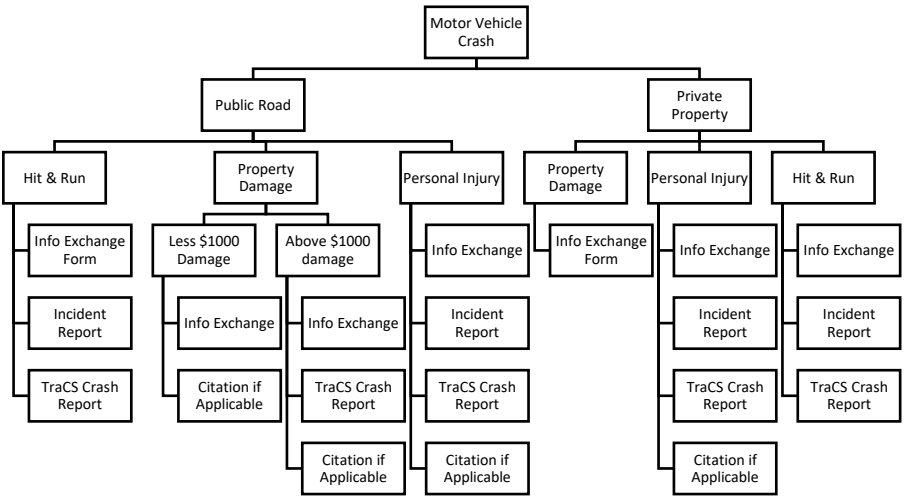
- If the citation is being issued pursuant to a crash, write "PD Crash" or "PI Crash" in the notes for the statute violation as well as in the Officer Notes section
- Officer Notes on the citation is similar to handwriting notes on the back of the officer copy of handwritten citations. Details that would be helpful in court should be written there.
- Report number formats should be listed as 21-12345 and not in any other format.
- The Primary Reason for Stop (PRS) code should be listed for each citation and warning given. If the vehicle was stopped pursuant to a traffic violation, that statute number should always be selected as the appropriate PRS code.
- Crash Reports should have an on-duty supervisor (usually your supervisor) listed as the "approving supervisor" so it is routed correctly.
- A diagram must be completed for all crash reports unless an on-scene investigation wasn't done. If an on-scene

investigation wasn't completed, the reason should be noted in the narrative portion of the report.

- If a Deputy submits a citation that contains an error or needs to be disregarded by the Sarpy County Attorney's Office, the Deputy shall adhere to the following protocol.
    - Email a TraCS Administrator with the following information:
        - TraCS citation number containing the error
        - Report Number
        - Description of the error
        - New citation number (if applicable)
    - The Deputy will keep printed copies of all citations involved in the incident for proper record.
    - The TraCS Administrator will follow the established protocol with the County Attorney's Office to ensure the appropriate citation is filed.

- Paper Entry Mode
    - To manually enter a hand-written citation, first click "Paper Entry Mode" at the top of the TraCS screen prior to clicking on "Electronic Citation".
    - Once this is selected, then click on "Electronic Citation" on the let and ensure you enter the entire citation number on the hand-written copy. (Ex: SC123456)
    - Once successfully entered, the status of the form should be "Issued". Print a copy of the citation from TraCS to include with your report.

Crash Report Decision Tree



Crash Report – Public Entities Property Damage

- Below are the public entities that may be listed in crash reports for damaged public property. Enter all damaged public property in crash reports so appropriate steps can be taken to recoup the damages.

Sarpy County Public Works	15100 S 84th St, Papillion, NE 68046	402-537-6900	Street signs, traffic lights, & road barriers on unincorporated county roads, neighborhoods, etc
OPPD	444 S. 16th Street Mall Omaha, NE 68102	402-536-4131	Power poles, power supports, & street lights
City of Springfield	PO Box 189 Springfield, NE 68059	402-253-2204	Street signs, & barriers within the city limits of Springfield
City of Gretna	PO Box 69 Gretna, NE 68028	402-332-3336	Street signs & barriers within the city limits of Gretna
Nebraska DOT	4425 S. 108th Street Omaha, NE 68137	402-595-2534	Street signs, traffic lights, & road barriers on I-80, Hwy 370, Hwy 6, Hwy 50, Hwy 34, & Hwy 75

Fatality/Critical Injury Crash

- The Crash Response Unit (CRU) shall be requested in accidents involving death or life threatening injuries
    - ***"Rule of Thumb" If a Medical Helicopter responds or injuries declared "Code 3", contact the Crash Response Unit***
- A blood draw needs to be conducted for all driver's involved in fatal crashes and if a pedestrian over the age of 16 is involved.
- A statistical blood draw (fatal crash blood draw where no DUI is suspected) do **NOT** read the Post-Arrest Chemical Test Advisement
- ***If DUI is suspected, conduct blood draw as normal***
- Utilize DUI blood draw procedures (signed consent or search warrant needed)
- If suspect driver is medically cleared in reasonable time, can obtain breath test for DUI
- Obtain witness information and their account of the crash and have them complete written statements
- Identify & protect potential evidence
- Do not allow Fire Depts. to sweep the scene
- Property cannot be removed from vehicle without Crash Reconstructionist approval
- Get passenger and witness info
- Complete Crash & Offense Reports
- **Road Patrol Deputy responsible for initial offense report, State Report, and "not-to-scale" diagram**
- Tow all involved vehicles involved with an Investigation Hold
- Assist Crash Reconstructionist as needed and direct any questions on-scene to them

Railroad Crossing Crash Checklist

Taken from BNSF Checklist

TRAIN IS NOT LISTED AS A MOTOR VEHICLE

Engineer Info:
Name, Address, DOB, Phone, Time of Collision, Train Speed Estimation at Collision *(OLN Number Not needed on Accident Report)*
Conductor Info:
Name, Address, DOB, Phone *(OLN Number Not needed on Accident Report)*
Train Info:
Lead engine number, Train ID Number (from Conductor), Number of cars in train, Railroad Co. name/address (owns tracks), Name of Railroad Co. operating train, additional crew members
Engine Info:
Headlight working? Horn working? Bell working?
Misc Info:
RR Car number on crossing? Distance to last RR car from POI? Witnesses?

AT THIS POINT, IF NO FURTHER INFORMATION IS REQUIRED, CONSIDER REALASING THE TRAIN

Crossing Signals:
Light/gate bell combination? Light/bell combination?, Passive warning (crossbucks)? Wig-wag type? Lights flashing/bells ringing on your arrival? Crossing Gates down? (If devices not working upon your arrival, explain)
Other Crossing Characteristics:
Advance warning signs?, Crossing surface (rubber, asphalt, etc.)?, Pavement Markings? DOT/AAR crossing ID number? Width of right-of-way?, Visual obstructions? Citation given if warranted?

Mile Markers

Hwy 370MM	X-Street	Hwy 34MM	X-Street
0	Hwy 6	385	Hwy 75
0.2	204th St	387	Harlan Lewis Rd
0.4	200th St	388	Missouri River
1.2	192nd St		
2.2	180th St	**Hwy 75MM**	**X-Street**
3.1	168th St	76.9	Platte River
4	Wick/Sapp Bros	77.2	LaPlatte Rd
4.1	I-80	78.6	Platteview Rd
5.2	Hwy 50	79.4	Fairview Rd
5.9	132nd St	80.4	Capehart Rd
6.4	126th St	81.9	Hwy 370
6.9	120th St	83.3	Cornhusker Rd
7.4	114th St	84.9	Chandler Rd
9.2	96th St		
10.4	84th St		
11.4	72nd St		
11.9	66th St		
12.4	60th St		
13.4	48th St		
15.4	25th St		
16	Hwy 75		

Hwy 6 MM	X-Street
341	Platte River
341.4	255th St
342	252nd St
342.3	Pflug Rd
343.9	234th St
345	Melia Rd
345.6	Hwy 31/NEX Dr
346	R&R Rd
347	Jansen Dr
347.6	216th St
348	Bryan St
348.5	Angus Rd
349	Hwy 370
349.7	Lincoln Rd
350	Cornhusker Rd
350.5	Valaretta Dr
351	Giles Rd
352	Harrison St

Hwy 31	X-Street
0	Hwy 50
0.4	Riha Rd
4.3	192nd St
5.3	204th St
6	AKS Aquarium
6.2	Fishery Rd
7.8	Buffalo Rd
8.8	Ruff Rd
9.8	Pflug Rd
10.6	Platteview Rd
11.1	I-80

Hwy 50 MM	X-Street
77.1	Platte River
77.2	Hwy 31
77.9	Riha Rd
78.2	Cornish Rd
79.5	Buffalo Rd
81.5	Pflug Rd
82	Main St
82.5	Platteview Rd
83.6	Fairview Rd
84.6	Capehart Rd
85.6	Schram Rd
86.6	Hwy 370
87.1	Prairie Corner Rd
87.3	Frontier/Cornhusker
87.6	I-80
88.1	Meadows Blvd
88.6	Giles Rd
89.1	Chandler Rd
89.3	Echo Hills/Josephine
89.6	Harrison St

Parking Violations

- 60-1901 – Abandoned Motor Vehicles
  - 6 hours, if no license plates or valid In-transits on public property
  - 24 hours unattended except where parking is legally permitted
  - 48 hours, unmoved
  - 7 days on private property
  - 12 hours on any freeway (60-6166)
- 60-6,166
  - Within 15’ of a fire hydrant
  - Within 20’ of a cross walk
  - Within 30’ of a traffic control device
  - In front of a driveway (public or private)
  - 50’ of the nearest railroad crossing
  - Within an intersection, upon any bridge
  - Or, anywhere posted
- 18-1736 – Handicap Parking Violation
  - Registered owner goes on the citation if the identity of the person who parked the vehicle cannot be readily determined
  - $100 fine (waiverable)

- S5-511 – City of Springfield
  - No Parking on street 0200-0600

- G5-416 – City of Gretna
  - Snow Emergency

County Ordinances

- Public Nudity- Ord. # 1-1-01……..Class III Misd.
  - *It shall be unlawful for any person to intentionally appear in a public place while nude or in a state of nudity*
- Disorderly Conduct- Ord. # 2-1-01……..Class III Misd.
  - *It shall be unlawful for any person to engage indisorderly conduct which disturbs the peace and good order of the County by unreasonable and disruptive noise, public intoxication or drunkenness, fighting, or otherwise violating the public peace and good order by offensive or disorderly conduct.*
  - **Only applicable in unincorporated areas of the County. Cannot be enforced in city limits of Gretna or Springfield and you use the respective City Code for disorderly conduct.**
- Peddler/Hawker Permit- Ord. # 2-2-01……$100 fine
  - *It shall be unlawful for any person to engage in peddling, hawking, or soliciting for commercial purposes without first registering as a peddler, hawker, or solicitor with the County. All registered peddlers, hawkers, or solicitors must carry such registration and a photo ID when engaging in business. Also, it is unlawful to enter on private property with signs saying "No Solicitations Allowed" or other words to such effect.*
    - *Does not apply to non-commercial purposes such as school fundraising, religious organizations, or delivery of newspaper, etc.*
    - *Operate from 9am-sunset (cannot go past 8PM)*

- ***Any person found in violation shall be fined $100 for each offense.***

Updated Peddler Permit List available at:

https://apps.sarpy.com/peddlerlookup/

City Code

- Gretna Disorderly Conduct Code: 3-104……..Class III Misd
  - *It shall be unlawful for any person to engage in conduct or behavior which disturb the peace and good order of the City by clamor or noise, intoxication, drunkenness, fighting, using of obscene or profane language in the streets or other public places, or is otherwise indecent or disorderly conduct or lewd or lascivious behavior.*

- Springfield Disorderly Conduct Code:6-316…Class III Misd
  - *Any person who shall knowingly start a fight, fight, commit assault or battery, make unnecessary noise, or otherwise conduct themselves in such a way as to breach the peace shall be deemed to be guilty of a misdemeanor.*

Sex-Offender Registry Checks

- Utilize https://sor.nebraska.gov/le to conduct compliance checks
- Use this site to register to obtain a username as well
- Click on "Compliance Checks" in left hand column.
- At the top of the "Compliance Check" page, complete Deputy Name, Agency, Date Checked, and location of residence/employment/school.
- BE SURE TO CLICK THE COMPLIANT BOX
- Already registered addresses/employer/phone may be at the bottom of the page and can have the box checked if compliant
- Not checking the box will result in a record reflecting non-compliance
- It is ***not*** considered "non-compliant" if you are unable to make contact.
- If three (3) attempts are made and contact is not successful, contact the SOR Compliance Deputy via email to inform him/her of the inability to make contact with the sex offender.

Traffic Law Enforcement

- Verbal warnings shall only be issued when issuing a written warning is not practical. Examples include:
  - No violation existing;
  - A priority call arises;
  - Extenuating circumstances
- Written warnings are the dominant method of warning issuance
- Incident/Arrest reports are not required for the following offenses. Rather, notes shall be placed in "Comments for the Prosecutor" field noting specific details that would normally be in your report for the offense.
  - DUS/DUR
  - No Operator's License
  - Willful Reckless Driving/Reckless Driving
  - Exhibition of Speed
  - Violations of POP Permit

Golf Car/Cart

- Unincorporated Public Roadway (Illegal)
    - 60-6,381
        - Allowed in parade with class O license and Liability coverage and safety flag/liability ins. Required
        - Possible child neglect charge for parents if driver is under 16 and/or
        - Educate parents of drivers under 16 of the dangers
- City of Gretna Public Roadway (Illegal)
    - 4-403/4-404
        - Allowed in parade with class O license and Liability coverage and safety flag/liability ins. Required
- City of Springfield Public Roadway (Illegal)
    - 60-6,381
        - Allowed in parade with class O license and Liability coverage and safety flag/liability ins. Required
        - Springfield doesn't specifically address in ordinance so it reverts to unincorporated rules-educate parents of drivers under 16
        - And/or possible child neglect charge for parents.

Utility-Type Vehicle (UTV)

- Unincorporated Public Roadway (Legal)
    - 60-6,356
        - Between sunrise and sunset
        - Class O license or farm permit and liability coverage
        - Speed less than 30 mph or speed limit, whichever is less
        - Three or more non-highway wheels
        - Designed for one rider and one passenger
        - Safety flag at least five feet off the ground and 30" square
- City of Gretna Public Roadway (Illegal)
    - 4-404
        - Allowed in parade with class O license and liability coverage and safety flag
- City of Springfield Public Roadway (Illegal)
    - 60-6,356 & 5-406
        - Illegal on roads with more than two marked traffic lanes unless to cross the roadway
        - Headlights and tail lights on
        - Between sunrise and sunset
        - Safety flag at least 5 feet off the ground
        - Between 48" and 74" wide
        - No more than 135" long
        - Between 900lbs and 2,000 lbs
        - Four or more low pressure tires
        - Allowed in parades
        - Illegal on roads with more than two marked traffic lanes
        - Class O permit or farming permit

- Liability insurance
- No modified muffler or spark arrester removed
- Speed less than 30 mph or speed limit, whichever is less.
- Occupant protection system, 4 or 5 speed or auto transmission

All-Terrain Vehicle (ATV)

- Unincorporated Public Roadway (Legal | Ag-Only)
    - 60-6,356
        - Illegal on roads with more than two marked traffic lanes unless to cross the roadway
- City of Gretna Public Roadway (Illegal)
    - 60-6,356/4-404
        - Allowed in parade with class O and liability coverage with safety flag
- City of Springfield Public Roadway (Legal-Ag Only)
    - 60-6,356/5-406
        - Illegal on roads with more than two marked traffic lanes unless to cross the roadway agricultural only

Minibikes

Two wheels of less than 14” in diameter. 45cc or less engine

- Unincorporated Public Roadway (Illegal)
    - 60-6,352
        - Off road use only-allowed in parades, this also applies to go carts, garden tractor, lawn mower, and snowmobiles
        - No OLN required, no registration required
        - Does not apply to electric personal assistive mobility devices
        - Applies to similar 2, 3, or 4 wheeled miniature vehicles
        - State parks may have different rules within the parks, consult game and parks
        - Never allowed on any roadway regardless of number of marked traffic lanes
- City of Gretna Public Roadway (Illegal)
    - 60-6,352/4-404
        - Always illegal in the city regardless of number of marked traffic lanes
- City of Springfield Public Roadway (Illegal)
    - 60-6,356/5-402
        - Always illegal in the city regardless of number of marked traffic lanes

Mopeds

Motor not exceeding 50cc and maximum speed of 30MPH. No title or registration as long as pedals are not removed. If pedals are removed, it is considered an off-road vehicle. If pedals are removed, check requirements for motorcycle. Needs a class O operator's permit and a helmet is required (60-6,279). All traffic laws apply.

- Unincorporated Public Roadway (Legal)
    - 60-6,313
        - Not an autocycle
        - Illegal on interstates, defense highways, or sidewalks
        - When traveling on a roadway with speed limit over 45 mph, must stay as far right as possible
- City of Gretna Public Roadway (Legal)
        - Same as above
- City of Springfield Public Roadway (Legal)
    - 60-6,313 / 5-404-404.04
        - Same as above

Motorcycle

- General for all Roadways (Legal)
    - Not more than three wheels with seat or saddle
    - Needs class M endorsement
    - Over 50 cc engine-if less than 50 cc engine, it is a moped
    - Not considered an autocycle
    - Helmet required (60-6,279)

Autocycle

- General for all Roadways (Legal)
    - Seat that is not designed to sit astride
    - Three wheels in contact with the ground
    - Antilock brakes with steering wheel and pedals
    - Driver and passenger side by side or tandem
    - Seatbelts
    - Helmets required when seating area is not enclosed (60-6,279)

Dirt Bike

- General for all Roadways (Legal)
    - Legal only if properly titled and registered to travel on the roadways (60-124)
    - Must have rear license plate
    - Falls under same rules as a motorcycle-over 50 ccs engine capacity
    - Under 50 ccs engine capacity-see moped section
    - Wheel diameter of 14" or more
    - Class M permit and liability insurance

Bicycle

- General for all Roadways (Legal)
    - 60-6,317
        - Travel on the right when moving slower than speed of traffic
        - Must ride single file when more than one
        - Riding on sidewalk shall give right of way to pedestrians
        - Obey all traffic laws
        - Human powered-if electric assist see moped section
        - Headlight and taillight after sunset to sunrise

Skateboards & Skates

- City of Gretna Public Roadways (Illegal)
  - 5-405
    - Illegal in any street or highway unless at a crosswalk

Motorized Toys

- City of Springfield Public Roadways (Illegal)
  - 4-305
    - Illegal on any street unless at a crosswalk

Low-Speed Vehicle

- General for all Roadways (Legal)
    - 4 wheels, max speed between 20-25 mph, weight is less than 3000 lbs (60-119.01)
    - Windshield and occupant protection system (60-6,380)
    - Motorcycle with sidecar is NOT a low speed vehicle
    - Operated on highway in which the speed limit is not more than 35mph
    - May cross a highway with speed more than 35 mph
    - Must have valid class O operator's license and liability coverage
    - Dept. of Transportation may prohibit on any highway within its jurisdiction

Traffic Statutes

Moving Traffic Violations

Crime (Fine/Classification)	***Statute***
Speeding 1-5mph ($10) [$59] 6-10mph ($25) [$74] 11-15mph ($75) [$124] 16-20mph ($125) [$174] 21-35mph ($200) [$249] 36mph + ($300) [$349]	*60-6,186*
ATV on controlled access highway (NW)	*60-6,356*
Careless Driving ($100)	*60-6,212*
Child Restraint ($25) <6 Car Seat - 6-18 Seat Belt	*60-6,267*
Driving around R/R arm ($100)	*60-6,170*
Driving during Revocation (15 year) (IIIF)	*60-6,197.06*
Driving during Suspension/Revocation	*60-4,108*
Driving left of center ($25)	*60-6,131*
Driving on fire hose (NW)	*60-6,184*
Driving on median ($25)	*60-6,141*
Driving on shoulder ($25)	*60-6,142*
Driving on sidewalk ($25)	*60-6,178*
Driving too fast for conditions ($100)	*60-6,185*
DUI (NW)	*60-6,196*

DUI (Underage) (.02) (NW)	*60-6,211.01*
Exhibition/Racing (NW) (IIM)	*60-6,195*
Failure to dim auxiliary lights ($25)	*60-6,225*
Failure to dim headlights ($25)	*60-6,224*
Failure to move over for E.V. ($100) **Highway**	*60-6,378*
Failure to move over for E.V. ($100) **All roads except Hwy**	*60-6,378.01*
Failure to signal ($25)	*60-6,161*
Failure to yield emergency vehicle ($100)	*60-6,151*
Failure to yield private road/driveway ($25)	*60-6,149*
Failure to yield to the left ($25)	*60-6,147*
Failure to yield to the right ($25)	*60-6,146*
Flashing signals violation (red/yellow) (NW)	*60-6,125*
Flight to avoid arrest (motor vehicle) (NW)	*28-905*
Following to close ($50)	*60-6,140*
Illegal U-Turn ($25)	*60-6,160*
Impeding traffic ($25)	*60-6,193*
Improper lane change ($25)	*60-6,139*
Improper Turn ($25)	*60-6,159*
Leaving the scene – Personal Injury (Felony)	*60-697*
Leaving the scene – Property Damage (NW)	*60-696*
Motorcycle footrests ($10)	*60-6,307*
Motorcycle lane restrictions ($10)	*60-6,308*
Motorcycle passenger restrictions ($10)	*60-6,307*

No Seatbelt ($25) **CITE FOR ORIGINAL OFFENSE**	*60-6,270*
Obedience to traffic control device ($25)	*60-6,119*
Overloading front seat ($50)	*60-6,179*
Passing (Same direction) ($25)	*60-6,132-136*
Passing (School zone prohibited) ($25)	*60-6,134.01*
Passing in no passing zone ($25)	*60-6,137*
Passing school bus w/ arm extended ($100)	*60-6,175 (1)*
Passing to the right ($25)	*60-6,134*
Reckless Driving (NW) IIIM	*60-6,213*
Refusal to sign citation (Arrest)	*60-684*
Refusal to submit to PBT/Chemical Test (NW)	*60-6,197*
Stop sign violation ($75)	*60-6,148*
Stopping or Parking in a public roadway	*60-6,164*
Texting while driving – First Offense ($200)	*60-6,179.01*
Traffic signal violation ($75)	*60-6,123*
Unauthorized use of motor vehicle (NW) IIIM	*28-516*
Unsafe backing ($25)	*60-6,169*
Willful reckless driving (NW)	*60-6,124*
Wrong way on one way/round-about ($25)	*60-6,138*

Non-Moving Violations

Crime(Fine/Classification)	***Statute***
Allow unlicensed person to drive ($50)	*60-491*
Auxiliary lights (more than 2) ($25)	*60-6,225*
Bald/Improper use of tires ($25)	*60-6,252*
Brake light out/turn signal out ($25)	*60-6,226*
Colored lights; red/green to front ($25)	*60-6,229*
Cracked Tail/Brake Lens ($25)	*60-6,219*
Depositing materials in road or ditch ($100)	*39-310*
Expired In-Transits ($50)	*60-376*
Expired license plates, cars, pickups, vans ($25)	*60-362*
Expired operator's license (NW)	*60-490*
Fail to display two plates ($25)	*60-399*
Fictitious display of plates/renewal tag ($50)	*60-399*
Handicapped parking violation 1st offense ($150)	*18-1741.01*
Improper display of plates [not visible, dirty] ($25)	*60-399*
Improper parking ($25)	*60-6,166*
Improper use of horn ($25)	*60-6,285*
Leaner's permit violation (NW)	*60-4,123*
Lights required after dark ($25)	*60-6,235*
Misuse of dealer plate ($50)	*60-3,114*
Muffler violation ($25)	*60-6,286*

No headlights ($25)	*60-6,219*
No motorcycle endorsement ($75)	*60-4,127*
No motorcycle helmet ($50)	*60-6,279*
No operator's license ($75)	*60-484*
No operator's license on person ($25)	*60-489*
No proof of insurance (NW)	*60-3,167*
No proof of ownership ($50)	*60-376*
No registration/duty to carry ($25)	*60-363*
No registration: plates, cars, pickups, vans ($25)	*60-362*
No taillights ($25)	*60-6,219*
Nonresident DL requirements ($25)	*60-488*
Obstruction below AS-1 line ($25)	*60-6,257*
One headlight out ($10)	*60-6,219*
Open container of alcohol possession ($50)	*60-6,211.08*
Open door in traffic lane ($15)	*60-6,180*
Operation of vehicle outside DL restrictions ($50)	*60-4,141*
Poss. of multiple driver licenses – CDL ($100)	*60-4,140*
Poss. of radar transmission device ($200)	*60-6,275*
Provisional operator's permit violation (NW)	*60-4,120.01*
Rearview mirror required in trucks ($10)	*60-6,253*
Resident fail to register (NW)	*60-305.01*

Rubbish on highway ($100)	*39-311*
Safety glass required (NW)	*60-6,263*
Slow moving emblem placard ($25)	*60-6,241*
Spilling load ($100)	*60-6,304*
Splash aprons ($25)	*60-6,283*
Studded snow tires [11/1 to 4/1] ($25)	*60-6,250*
Tail light out ($25)	*60-6,219*
Tinted windows ($25)	*60-6,257*
Unattended vehicles ($25)	*60-6,168*
Uncovered material ($100)	*60-6,304*
Unreadable/obstructed plates ($25)	*60-399*
Update operator's license address/name (NW)	*60-4,120*
White light to rear (Reverse Lights On only) ($25)	*60-6,228*

Criminal Statutes

Crime (Fine/Classification)	***Statute***
Accessory to a felony	*28-204*
Aiding and abetting	*28-206*
Assault on officer 3rd (Felony) officer only needs to be injured	*28-931*
Assault on officer 2nd (Felony) bodily injury/use of weapon	*28-930*
Assault on officer 1st (Felony) serious bodily injury	*28-929*
Assault 3rd	*28-310*
Assault 3rd mutual consent	*28-310 (2)*
Assault 2nd (Felony)	*28-309*
Assault 1st (Felony)	*28-308*
Burglary	*28-507*
Burglary Tools (Possession) (Felony)	*28-508*
Child abuse Misdemeanor-Negligence Felony-Intentional	*28-707*
Carrying concealed weapon	*28-1202*
Contributing to the delinquency of a minor	*28-709*
Criminal attempt (one class lower than crime)	*28-201*
Criminal conspiracy (same class)	*28-202*
Criminal Mischief	*28-519*
Criminal Mischief Classifications	
$0-$4999 - Misdemeanor	

$5000+ - Felony	
Criminal Impersonation	*28-638*
Cruelty to animals	*28-1008*
Disturbing the peace	*28-1322*
Domestic assault	*28-323*
Escape (Felony)	*28-912*
False Reporting	*28-907*
Fireworks (Possession or throw) ($50)	*28-1244*
Forgery 1st	*28-602*
Forgery 2nd	*28-603*
Interfering with fireman	*28-908*
Intimidation by phone	*28-1310*
Littering ($100)	*28-523*
Minor in possession of alcohol	*53-180.02*
Minor in possession of tobacco	*28-1418*
Minor misrepresenting age (IIIM) (Penalty 53-180.05)	*53-180.01*
Obstructing a police officer	*28-906*
Open burning ban ($100)	*81-520.01*
Operate MV Intoxicated w/ child under 16	*28-1254*
Possession of a firearm by felon or fugitive from justice	*28-1206*
Possession of prohibited weapons	*28-1203*
Procuring alcohol for minors	*53-180*
Protection order violation	*42-928*

Public consumption of alcohol (public property/road) ($100)	*53-186.01*
Public indecency	*28-806*
Resisting arrest	*28-904*
Robbery – II Felony	*28-324*
Runaway	*43-247.03*
Sale of alcohol to minors	*53-180*
Sale of tobacco to minor	*28-1419*
Sale or open containers after hours	*53-179*
Shoot from highway ($50)	*37-513*
Strangulation – Felony	*28-310.01*
Theft by deception	*28-512*
Theft by shoplifting	*28-511.01*
Theft by unlawful taking	*28-511*
Theft of services	*28-515*
Theft/Possession of stolen property	*28-517*
Theft Classifications	
$0-1499 – Misdemeanor *$1500+ - Felony*	

Terroristic Threats – IV Felony	*28-311.01*
Transport Child under 16 while Intoxicated	*28-1254*
Trespassing – 1st Degree (NW)	*28-520*
Trespassing – 2nd Degree ($100)	*28-521*

Defying an order to leave (NW)	
Unlawful acts (Controlled Substances)	*28-517*
Unlawful discharge of firearm – Felony (Fires at occupied vehicle or occupied dwelling)	*28-1212.02*
Unlawful possession of firearm (Under 18)	*28-1204*
Use of a deadly weapon to commit a felony	*28-1205*
Use of tobacco in public place	*71-5733*

Drug Violations

Crime (Fine/Classification)	***Statute***
Possession of drug paraphernalia ($100)	*28-441*
Unlawful Acts	*28-417*
Controlled substance-prohibited acts	*28-416 (__)*
Unlawful distribution and manufacture of controlled substance	*28-416 (1)*
Possession of controlled substance **except** marijuana	*28-416 (3)*
Drug distribution to minors near school/playground	*28-416 (4)*
Use of minors in drug trafficking/manufacture	*28-416 (5)*
Possession of cocaine	*28-416 (7)*
Possession of crack cocaine	*28-416 (8)*
Possession of heroin	*28-416 (9)*
Possession of meth/amphetamine	*28-416 (10)*

Possession of marijuana >1oz but <1lbs (IIIM)	*28-416 (11)*
Possession of marijuana > 1lbs (IVF)	*28-416 (12)*
Possession of marijuana < 1oz (NW) (Infraction-1st offense)	*28-416 (13)*
Possession of a firearm when violating (2,7,8,9,10)	*28-416 (16)*
Possession of money when violating all (1 – 13)	*28-416 (17)*

Game and Parks Violations

Crime (Fine/Classification)	***Statute***
Harassment of game animal with vehicle (IIIM)	*37-516*
Hunting game birds from vehicle ($50) (IIIM)	*37-538*
Hunting privately owned land (IIIM) [Do not need complaint of owner to arrest] [Special Signage]	*37-726*
Interference with person hunting, trapping, or fishing (IIIM)	*37-564*
No Habitat/Aquatic Stamp ($50)	*37-426*
No Hunting/Fishing Permit ($100)	*37-411*
Possession of loaded shotgun in vehicle ($50) (IIIM)	*37-522*
Shooting at game from roadway ($100) (IIIM)	*37-513*
Unlawful entry into state park [w/o permit] (VM)	*37-443*
Unlawful possession of game during open season (IIIM)	*37-504*

99-Codes

Statute Code	Description
99-9999	Other/Info/Supp Report
99-9000	Animal Complaint
99-9001	Assist other Agency
99-9002	Backgrounds
99-9003	Bad Checks
99-9004	Barking Dog
99-9005	Civil Matter
99-9006	Coroner Call
99-9007	Crisis Negotiation
99-9008	Curfew Violation
99-9009	Damage to Cruiser
99-9010	Death Accidental
99-9011	Death Natural
99-9012	Death Unattended
99-9013	Death SID
99-9014	Death Traffic
99-9015	Destroy Deer
99-9016	Emergency Protective Custody (EPC)
99-9017	ESU Callout
99-9018	Found Property
99-9020	Lost Property
99-9021	Search and Rescue Callout
99-9022	Missing Person
99-9023	Missing Person Returned
99-9024	Narcotics Information
99-9025	Polygraphs
99-9026	Recovered Stolen Vehicle (Sarpy)
99-9027	Recovered Stolen Vehicle-Other Jurisdiction
99-9028	Rescue Call
99-9029	Runaway

99-9030	Runaway Returned
99-9031	Suicide
99-9032	Truancy
99-9033	Use of Force
99-9034	Injured on Duty
99-9035	Fire Call
99-9036	PI Collision
99-9037	PD Collision
99-9038	Pursuit
99-9039	Damage to County Property
99-9040	Suspicious Activity
99-9041	Harassment
99-9042	Check Wellbeing
99-9043	Attempted Suicide
99-9044	Bomb Threat
99-9045	Sex-Offender Registry Non-Compliance
99-9046	Identity Theft
99-9047	HHS Referral
99-9048	Line Investigation
99-9050	Coroner Call-No Autopsy
99-9051	Coroner Call-Autopsy
99-9052	Autopsy-Out of County
99-9053	Metro Task Force
99-9054	Juvenile Services
99-9055	Civil Protective Custody (CPC)
99-9056	Warrant Service
99-9057	Tavern Report
99-9058	Cyber Tips
99-9059	Mental Health Incident
99-9060	Warrants Info
99-9061	Death-In Custody

MDC Info

Windows Login:
Username: *scso*
Password: *959*

Must connect HPD Connection or have WiFi connected first, then Mobility Client

Mobility Client Password: *$SCSO959*

PremierMDC program username and password is user specific. Contact Public Safety Information Systems at ps@sarpy.com or have dispatch page the PS On-Call if you have Mobility Client, MDC, or login issues.

Interoperability Radio Channels

- A-4 (LE Common 1)
- A-6 (Law Fire 1)
- B-2 (METRO 1)
- B-3 (METRO 1E) *encrypted*

Miscellaneous Information

- Nuisance/Sanitary Conditions Form to respective jurisdiction (i.e., zoning areas)
- Hansen Lake – traffic laws apply, dedicated roads
- Chris Lake – private roads, non-dedicated
- Court Date for Adults
    - Wednesday 5-6 weeks from offense date at 9:00AM
- Court Dates for Juveniles
    - To Be Set

Miranda Rights

1. **You have the right to remain silent.**

2. **Anything you say can and may be used against you in court.**

3. **You have the right to talk to a lawyer before answering any questions, and to have the lawyer with you during questioning.**

4. **If you want a lawyer, and cannot afford a lawyer, one will be provided for you, free of cost, before any questioning.**

5. **You can decide at any time to exercise these rights and not make any statements or answer any questions.**

Notes

Talkgroup	SCSO - (A)	Talkgroup	LAW COMMON - (B)	Talkgroup	SPECIAL OPS (C)	Talkgroup	SARPY COWIDE - (D)
A-1	LE-WEST-S **(SECURE)**	B-1	LE-EAST-S **(SECURE)**	C-1	SWAT-1 **(SECURE)**	D-1	EVENT - 1
A-2	SCSO-TAC-1 **(SECURE)**	B-2	METRO-1	C-2	SWAT-2 **(SECURE)**	D-2	EVENT - 2
A-3	LE-INFO **(SECURE)**	B-3	METRO-1-E **(SECURE)**	C-3	SWAT T/A **(SECURE)**	D-3	EVENT - 3
A-4	LE-COMMON-1 **(SECURE)**	B-4	METRO-2	C-4	CNU **(SECURE)**	D-4	EVENT - 4
A-5	SCSO-TAC-2-S **(SECURE)**	B-5	MED-HELO	C-5	STacMed **(SECURE)**	D-5	EVENT - 5
A-6	LAW-FIRE-1	B-6	LE-INVEST-S **(SECURE)**	C-6	OPD-ERU/ESU **(SECURE)**	D-6	EVENT-8-S **(SECURE)**
A-7	LAW-FIRE-2	B-7	LE-NARC-S **(SECURE)**	C-7	OPD-ERU2 **(SECURE)**	D-7	EVENT-9-S **(SECURE)**
A-8	LE-COMMON-2 **(SECURE)**	B-8	LE-COMMON-1 **(SECURE)**	C-8	OPD GANG **(SECURE)**	D-8	8-CALL-90 (CENTRAL)
A-9	SCSO-PRIMARY	B-9	LE-COMMON-2 **(SECURE)**	C-9	OFFSTCOM-4 **(SECURE)**	D-9	8-TAC-91 (EAST)
A-10	LAW-FIRE-S **(SECURE)**	B-10	COMMON - 1	C-10	OFFSTCOM-5 **(SECURE)**	D-10	8-TAC-92 (WEST)
A-11	SCSO-COURT-SEC	B-11	COMMON - 2	C-11	OFFSTCOM-6 **(SECURE)**	D-11	8-TAC-93
A-12	SART	B-12	JAIL	C-12	NARC-E-1 **(SECURE)**	D-12	8-TAC-94
A-13	SCSO-INVEST-S **(SECURE)**	B-13	JUV-JUSTICE	C-13	METRO-1-E **(SECURE)**	D-13	8-TAC-95
A-14	SCSO-TRAIN	B-14	SCSO-CARE	C-14	FUGITIVE R2R **(SECURE)**	D-14	8-TAC-96-P
A-15	LE-WEST *(Legacy)*	B-15	LE-EAST *(Legacy)*	C-15	FUGITIVE R2R	D-15	TALKAROUND
A-16	TALKAROUND-S **(SECURE)**	B-16	TALKAROUND-S **(SECURE)**	C-16	DC FUGITIVE	D-16	TALKAROUND-S **(SECURE)**

Talkgroup	DOUGLAS COUNTY (E)	Talkgroup	SWAT/CNU/STACMED - (F)	Talkgroup	METRO (G)	Talkgroup	EMERGENCY COMMUNICATIONS (H)
E-1	DC-DISP	F-1	SWAT-1 **(SECURE)**	E-1	METRO-1	H-1	ECOM-1
E-2	SW-DISP **(SECURE)**	F-2	SWAT-2 **(SECURE)**	E-2	METRO-1-E **(SECURE)**	H-2	ECOM-2
E-3	SE-DISP **(SECURE)**	F-3	SWAT T/A **(SECURE)**	E-3	METRO-2	H-3	ECOM-3
E-4	NE-DISP **(SECURE)**	F-4	CNU **(SECURE)**	E-4	METRO-3	H-4	ECOM-4
E-5	NW-DISP **(SECURE)**	F-5	STacMed **(SECURE)**	E-5	METRO-4	H-5	ECOM-5
E-6	W-DISP **(SECURE)**	F-6	LE-WEST-S **(SECURE)**	E-6	METRO-5	H-6	ECOM-6
E-7	CO-WIDE	F-7	TALKAROUND-S **(SECURE)**	E-7	METRO-6	H-7	ECOM-7
E-8	LE-EVENT-1	F-8	OPD-ERU/ESU **(SECURE)**	E-8	METRO-7	H-8	ECOM-8
E-9	LE-EVENT-2	F-9	OPD-ERU2 **(SECURE)**	E-9	Midlands Hospital	H-9	ECOM-9
E-10	DC-COMMON-EVENT-1	F-10	EVENT-9 **(SECURE)**	E-10	UNM-Bellevue Hospital	H-10	ECOM-10
E-11	DC-COMMON-EVENT-1	F-11	MED-HELO	E-11	Bergan Mercy Hospital	H-11	ECOM-11
E-12	DC-COMMON-EVENT-2	F-12	FIRE-EAST	E-12	Lakeside Hospital	H-12	ECOM-12
E-13	**BLANK**	F-13	FIRE-WEST	E-13	UNM-Omaha	H-13	ECOM-13
E-14	**BLANK**	F-14	FIRETAC-18	E-14	**BLANK**	H-14	ECOM-14
E-15	**BLANK**	F-15	FIRETAC-19	E-15	**BLANK**	H-15	ECOM-15
E-16	**BLANK**	F-16	FIRETAC-20	E-16	**BLANK**	H-16	ECOM-16